

HOUSE BILL 44

By Behn

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 50, Part 16, relative to self-administration
of prescribed medications.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-50-1602, is amended by adding
the following as a new subsection:

(h)

(1) A student may possess and self-administer prescribed rescue seizure
medication while on school property or at a school-related event or activity if:

(A) The rescue seizure medication has been prescribed for that
student as indicated by the prescription label on the medication;

(B) The self-administration is done in compliance with the
prescription or written instructions from the student's physician or other
licensed healthcare provider; and

(C) The student's parent or guardian provides to the school:

(i) A signed, written statement authorizing the student to
self-administer the medication while at school or at a school-
related event or activity;

(ii) A signed, written statement from the student's
healthcare provider that contains:

(a) The student's name;

(b) The name and purpose of the medication;

(c) The prescribed dosage;

(d) The route of administration;

(e) The frequency that the medication may be administered; and

(f) The circumstances in which the medication may be administered; and

(iii) The signed, written statement required by subdivision

(h)(4).

(2) The rescue seizure medication must remain in the sealed package with the intact label affixed by the dispensing pharmacy.

(3) The statements required by subdivision (h)(1) must remain on file in the office of the school nurse or school administrator.

(4) The LEA shall inform the student's parent or guardian who provided written authorization for the student to possess and self-administer rescue seizure medication that the school and its employees and agents are not liable as a result of any injury sustained by the student or another person from possession or self-administration of the rescue seizure medication. The student's parent or guardian must sign a statement acknowledging that the school is not liable, and the parent or guardian must indemnify and hold harmless the school and its employees against any claims relating to the possession or self-administration of the rescue seizure medication. This subdivision (h)(4) does not relieve liability of the school or its employees for willful or wanton misconduct.

(5) Unless subsequently rescinded in writing, the authorization is effective for the entirety of the school year in which it is granted. The LEA may suspend or revoke the student's possession and self-administration privileges if the student misuses the rescue seizure medication or makes the rescue seizure

medication available for usage by another person. If a student uses the medication in a manner other than prescribed, then the student may be subject to disciplinary action under the school codes.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.